



1        1. The beer distributor or holder of a small brewer self-  
2 distribution license or brewpub self-distribution license replaces  
3 the stock with beer or cider of equivalent value brands, quantities,  
4 packaging and alcohol by volume as the beer or cider withdrawn; or

5        2. The stock is withdrawn before the date, or immediately after  
6 the date, considered by the brewer of the product to be the date the  
7 product becomes inappropriate for sale to a consumer.

8        B. The provisions of this section shall not apply to beer or  
9 cider that:

10       1. Has suffered damage at the retail licensee's location,  
11 regardless of the date upon which the product becomes inappropriate  
12 for sale to a consumer. Beer distributors, small brewer self-  
13 distributors and brewpub self-distributors are prohibited from  
14 giving a refund for or replacing beer or cider that was damaged  
15 while in the possession of the retail licensee. Retail licensees  
16 are prohibited from requesting or requiring the beer distributor,  
17 small brewer self-distributor and brewpub self-distributor to remove  
18 such damaged product as a condition of continued business with the  
19 retail licensee; or

20       2. Has a date for recommended use that expired prior to October  
21 1, 2018. Retail licensees and brewers are prohibited from  
22 requesting or requiring the beer distributor, small brewer self-  
23 distributor and brewpub self-distributor to remove such expired beer  
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1 or cider as a condition of continued business with the retail  
2 licensee or brewer.

3 C. Notwithstanding the provisions of this section, a beer  
4 distributor, small brewer self-distributor, or brewpub self-  
5 distributor may issue a credit to a retailer for beer or cider  
6 removed from the retailer's premises pursuant to subsection A of  
7 this section if the distributor has previously made two quality  
8 control replacements to the same retailer for the same brand,  
9 packaging, and alcohol by volume for the beer or cider within one  
10 (1) calendar year. The credit shall:

- 11 1. Only be given once per calendar year per retailer;  
12 2. Be limited to a total of four cases of beer or cider;  
13 3. Not be a refund and may only be applied to future beer or  
14 cider purchases; and  
15 4. Not be considered a consignment sale or an unlawful  
16 inducement, rebate, or thing of value.

17 D. A consignment sale of beer ~~is~~ shall not be authorized under  
18 this section.

19 SECTION 2. This act shall become effective November 1, 2026.

20 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE  
21 March 5, 2026 - DO PASS AS AMENDED BY CS  
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